

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
ANTHONY ESTRADA,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial.

CITY OF NEW YORK, P.O. GUSTAVO OCHOA,
P.O. ZACHARY LAVENDER, P.O. JUSTIN HENDERSON,
Det. TERRANCE DELGADO, Sgt. DONALD GANNON,
P.O. CRAIG MATTHEWS and OFFICERS JOHN
AND JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers,

The basis of venue is:
CPLR 504 (3)

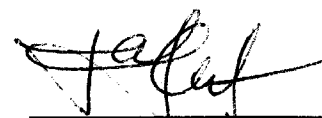
Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.

October 24, 2019



By: **JONATHAN L. GLEIT, ESQ.**

Attorney for Plaintiff
888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Gustavo Ochoa, Shield 6824, P.O. Zachary Lavender, Shield 26451, 44th Pct., 2 E 169th St. Bronx NY 10452; P.O. Justin Henderson, Shield No. 6824, SRG, 1278 Sedgwick Ave. Bronx NY 10452; Det. Terrance Delgado, Shield No. 11548, 25th Pct 120 E 119th St. NY NY 10035; Sgt. Donald Gannon, Shield No. 7983 of VICE, 1 Police Plaza, 12th Fl Det. Bureau, NY NY 10038; ECT Officer Craig Matthews, Shield 17472, 42nd Pct, 830 Washington Ave., Bronx NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANTHONY ESTRADA,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. GUSTAVO OCHOA,
P.O. ZACHARY LAVENDER, P.O. JUSTIN HENDERSON,
Det. TERRANCE DELGADO, Sgt. DONALD GANNON,
P.O. CRAIG MATTHEWS and OFFICERS JOHN
AND JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF ANTHONY ESTRADA

1. At the time of the commencement of this action, Plaintiff ANTHONY ESTRADA
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about December 27, 2014 through March 25, 2019, P.O. GUSTAVO OCHOA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about December 27, 2014 at approximately 3 A.M., through March 25, 2019, and throughout the hereinafter mentioned prosecution, P.O. GUSTAVO OCHOA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about December 27, 2014 through March 25, 2019, P.O. ZACHARY LAVENDER was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about December 27, 2014 at approximately 3 A.M. through March 25, 2019, and throughout the hereinafter mentioned prosecution, P.O. ZACHARY LAVENDER was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about December 27, 2014 through March 25, 2019, P.O. JUSTIN HENDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about December 27, 2014 at approximately 3 A.M. through March 25, 2019, and throughout the hereinafter mentioned prosecution, P.O. JUSTIN HENDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about December 27, 2014 through March 25, 2019, Det. TERRANCE DELGADO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

12. That on and about December 27, 2014 at approximately 3 A.M. through March 25, 2019, and throughout the hereinafter mentioned prosecution, Det. TERRANCE DELGADO was working and acting within the scope of his employment as a Police Officer, and under the color of law.

13. That on and about December 27, 2014 through March 25, 2019, Sgt. DONALD GANNON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

14. That on and about December 27, 2014 at approximately 3 A.M. through March 25, 2019, and throughout the hereinafter mentioned prosecution, Sgt. DONALD GANNON was working and acting within the scope of his employment as a Police Officer, and under the color of law.
15. That on and about December 27, 2014 through March 25, 2019, P.O. CRAIG MATTHEWS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
16. That on and about December 27, 2014 at approximately 3 A.M. through March 25, 2019, and throughout the hereinafter mentioned prosecution, P.O. CRAIG MATTHEWS was working and acting within the scope of his employment as a Police Officer, and under the color of law.
17. That on and about December 27, 2014 through March 25, 2019, OFFICERS JOHN AND/OR JAMES DOE , whose names are presently unknowable to Plaintiff but necessarily known by the defendants, and are meant to designate other officers involved in the prosecution of the Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YOK CITY POLICE DEPARTMENT.
18. That on and about December 27, 2014 through March 25, 2019 and throughout the hereinafter mentioned prosecution, OFFICERS JOHN AND/OR JAMES DOE were

working and acting within the scope of their employment as a Police Officers, and under the color of law.

19. That on or about December 27, 2014 through March 25, 2019 the Defendants initiated and continued a prosecution of Plaintiff without probable cause and with actual malice.

20. That said prosecution stemmed from an incident that commenced on December 27, 2014 at approximately 3 A.M., near 1360 Plimpton Avenue, Bronx, New York.

21. At said time and place Plaintiff ANTHONY ESTRADA was lawfully walking upon a sidewalk when he observed unidentified individuals following him in vehicles.

22. Upon being frightened by said persons, he entered the premises 1360 Plimpton Avenue, Bronx, New York, and Plaintiff entered into Apartment 1F.

23. Plaintiff closed the door to said apartment, however, officers of the New York City Police Department followed Plaintiff and entered the apartment whereat the plaintiff ANTHONY ESTRADA was detained and arrested.

24. That at the time and place above mentioned the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact by making false accusations against him that he was in possession of weapons, when they

knew, or in the exercise of reasonable care, should have known those accusations were false.

25. That the defendants, their agents, servants and/or employees initiated and continued a prosecution of Plaintiff accusing him of Criminal Possession of a Weapon and Firearm, when there was, in fact, no probable cause to arrest and prosecute Plaintiff for that charge and defendants initiated a prosecution with actual malice.

26. That the defendants P.O. GUSTAVO OCHOA, P.O. ZACHARY LAVENDER, P.O. JUSTIN HENDERSON, Det. TERRANCE DELGADO, Sgt. DONALD GANNON, P.O. CRAIG MATTHEWS and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

27. That defendants, their agents, servants and/or employees continued to prosecute Plaintiff and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

28. That all criminal charges brought against Plaintiff, which were brought under Docket Number 2014BX067392 in the Criminal Court of the City of New York, County of Bronx, and Case Number 00932-2015 in the Supreme Court of Bronx County

regarding Plaintiff's arrest of December 27, 2014 and prosecution under Penal Law 265.02(1), 265.01-b(1) and 265.01(1) were dismissed after acquittal of all charges and finding of Not Guilty, and the prosecution was terminated in Plaintiff's favor on March 25, 2019.

29. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of ANTHONY ESTRADA.

30. As a result of the malicious prosecution, Plaintiff's liberty was threatened and Plaintiff suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately one thousand five hundred and forty eight days.

31. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly prosecuting innocent citizens, and engaging in a policy and procedure of prosecuting persons arrested without reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas and/or to to gain overtime pay and/or further employment enhancement and opportunities, and repeatedly providing false information and testimony without reprimand to the offending officers.

32. That said illegal and unlawful prosecutions of innocent persons without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances, and as detailed below.
33. Said policy, practice and procedure of having arrest quotas and/or productivity goals and/or arrests and protections initiated for the purposes of enhanced overtime pay and employment opportunities, which results in the false arrests and protections of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.
34. Additionally in the case of Floyd, et al. v. City of New York, et al., brought as a class action for persons similarly situated, in the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath, along with other evidence including statistical analysis, that the NEW YORK

CITY POLICE DEPARTMENT routinely arrests and prosecutes primarily minority populations without a legal reason to do so, and are required or expected to do so, for amongst other nefarious reasons, to satisfy arrest quotas and enhance employment opportunities.

35. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

36. Additionally, defendants as named herein and their supervisors and commanders, have condoned, permitted and caused a policy, practice and procedure of arresting and prosecuting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under false pretense, and falsely swearing that they observed innocent persons engaged in illicit conduct such as being in possession of a weapon that in fact they were not in possession of, and other pre-textual excuses, and falsely alleging and prosecuting said innocent persons for the nefarious reasons stated above, and in an overzealous extra-constitutional effort to reduce the possession of weapons by persons of color in majority minority communities.

37. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

38. Furthermore, multiple individuals have been subjected to the same or similar practice of arresting persons of color in majority minority communities know to be innocent of weapons possession yet arrested and prosecuted all the same, such as, as a small example, Simone Phipps and Dwayne Henry on July 10, 2012; Geoffrey Robinson on July 7, 2015 and Elijah Smith arrested on May 27, 2016 in Bronx, New York and a multitude of other innocent persons known to the defendants by virtue of the claims,

investigations, complaints and actions brought by and on behalf of said persons against the CITY OF NEW YORK and its Officers.

39. The aforesaid failures regarding the practice of failing to properly and adequately discipline Defendants P.O. GUSTAVO OCHOA, P.O. ZACHARY LAVENDER, P.O. JUSTIN HENDERSON, Det. TERRANCE DELGADO, Sgt. DONALD GANNON, P.O. CRAIG MATTHEWS for abuse of authority, to track their discipline, and perfunctory punishment, directly caused the abuse of power, injury and insult visited upon the Plaintiff complained of herein, which was hastened by the failure of other Defendants to intercede to prevent said insult and injury.

40. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

41. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law

and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the plaintiff ANTHONY ESTRADA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF ANTHONY ESTRADA

44. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That on May 22, 2019, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

46. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

47. That the CITY OF NEW YORK did demand and notice and Plaintiff did attend and give testimony at an oral examination pursuant to General Municipal Law §50h on September 10, 2019.

48. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

49. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to deny and threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

50. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

51. That the defendants P.O. GUSTAVO OCHOA, P.O. ZACHARY LAVENDER, P.O. JUSTIN HENDERSON, Det. TERRANCE DELGADO, Sgt. DONALD GANNON, P.O. CRAIG MATTHEWS and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action against

Plaintiff and/or falsely and/or misleadingly testified against plaintiff thereby causing him to suffer unjust prosecutions initiated without probable cause that the prosecutions would succeed.

52. That all criminal charges brought against Plaintiff, which were brought under Docket Number 2014BX067392 in the Criminal Court of the City of New York, County of Bronx, and Case Number 00932-2015 in the Supreme Court of Bronx County regarding Plaintiff's arrest of December 27, 2014 and prosecution under Penal Law 265.02(1), 265.01-b(1) and 265.01(1) were dismissed after acquittal of all charges and finding of Not Guilty, and the prosecution was terminated in Plaintiff's favor on March 25, 2019.

53. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of ANTHONY ESTRADA.

54. As a result of the malicious prosecution, Plaintiff's liberty was threatened and Plaintiff was caused to suffer the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately one thousand five hundred and forty eight days.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

56. That as a result of the foregoing, the Plaintiff ANTHONY ESTRADA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF ANTHONY ESTRADA

57. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 56 as though more fully set forth herein.

58. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

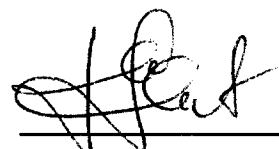
59. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrests and prosecution of individuals.

60. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

61. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff ANTHONY ESTRADA had his freedom threatened and rights abridged under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second and Third Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
October 24, 2019


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

ANTHONY ESTRADA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK

CORPORATION COUNSEL

100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

NY 10452; P.O. Justin Henderson, Shield No. 6824, SRG, 1278 Sedgwick Ave. Bronx NY 10452;
Det. Terrance Delgado, Shield No. 11548, 25th Pct 120 E 119th St. NY NY 10035; Sgt. Donald Gannon,
Shield No. 7983 of VICE, 1 Police Plaza, 12th Fl Det. Bureau, NY NY 10038;
ECT Officer Craig Matthews, Shield 17472, 42nd Pct, 830 Washington Ave., Bronx NY 10451

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

ANTHONY ESTRADA

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

October 24, 2019



JONATHAN L. GLEIT, ESQ.